

25NWCV00098 25NWCV00098

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CD%2C08%2F13%2F2026

Source SHA-256: c892bb223a8293de99b78176f543bbd8dc42a0c291f8fc1e47029f0a80b14515

Case Number: 25NWCV00098 Hearing Date: August 13, 2026 Dept: D

NIGEL WRIGHT V.

KAISER FOUNDATION HOSPITALS, ET AL.

CASE NO.: 25NWCV00098

HEARING: 08/13/2026 @

9:30 a.m.

#2

TENTATIVE ORDER

Defendant Kaiser Foundation

Hospitals' unopposed motion to compel arbitration is GRANTED.

The action is STAYED pending completion of arbitration.

Moving party to give notice.

Defendant Kaiser Foundation

Hospitals (Defendant) moves for an order to compel Plaintiff Nigel Wright (Plaintiff) to arbitrate her claims against Defendant. Defendant also requests staying this action pending the outcome of the arbitration.

Background

On January 9, 2025, Plaintiff filed the operative Complaint against Defendants Kaiser Foundation Hospitals,

Kaiser Permanente, and Does 1 through 25, inclusive, asserting two causes of action: (1) General Negligence and (2) Premises Liability.

Plaintiff alleges that on January 10, 2024, he fell after encountering a dangerous condition at Defendant's premises at 9333 Imperial Highway in Downey, sustaining injuries and damages.

On March 13, 2026, Defendant filed the instant motion.

No opposition or reply has been filed.

Legal Standard

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; see also *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-57.)

"If a court of competent jurisdiction. . .has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

Analysis

Defendant moves to compel Plaintiff to arbitrate his claims. According to Defendant, Plaintiff's claims are subject to binding arbitration pursuant to the provisions of the 2024 Group Agreement and Evidence of Coverage (EOC)

between Asurion, Plaintiff's employer, and Kaiser Foundation Health Plan, Inc. (Health Plan). Plaintiff was enrolled in the Kaiser Health Plan through Asurion's employee benefit plan for the 2023 and 2024 plan years and remained enrolled through January 1, 2025. (Petition, ¶ 6; Adkins Decl., ¶¶ 5-6, Ex. B; Asurion Decl., ¶ 4, Ex. D.) Defendant contends that Plaintiff personally enrolled through Asurion's online benefits enrollment system and, during the November 2022 and November 2023 enrollment periods, electronically accepted the Kaiser Foundation Health Plan Arbitration Agreement, which states:

Kaiser Foundation
Health Plan Arbitration Agreement — California

I understand that (except for Small Claims Court cases, claims subject to a Medicare appeals procedure or the ERISA claims procedure regulation, and any other claims that cannot be subject to binding arbitration under governing law) any dispute between myself, my heirs, relatives, or other associated parties on the one hand and Kaiser Foundation Health Plan, Inc. (KFHP), any contracted health care providers, administrators, or other associated parties on the other hand, for alleged violation of any duty arising out of or related to membership in KFHP, including any claim for medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of legal theory, must be decided by binding arbitration under California law and not by lawsuit or resort to court process, except as applicable law provides for judicial review of arbitration proceedings. I agree to give up our right to a jury trial and accept the use of binding arbitration. I understand that the full arbitration provision is contained in the Evidence of Coverage.

By enrolling in a Kaiser Permanente plan, I understand that this action will serve as my electronic signature of agreement to the conditions provided in Kaiser Foundation Health Plan Arbitration Agreement (above) and that by law this electronic signature will have the same effect as a signature on a paper form.

Note: If you do not wish to accept the arbitration agreement above you must make a new Health Plan selection.

(Petition Ex. E.)

The Agreement/EOC contains a provision that provides for binding arbitration of Plaintiff's claims against Defendant. The Binding Arbitration states, in part:

Scope of arbitration Any dispute shall be submitted to binding arbitration if all of the following requirements are met:

.

The claim arises from or is related to an alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. (Health Plan), including any claim for medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of the legal theories upon which the claim is asserted.

.

The claim is asserted by one or more Member Parties against one or more Kaiser Permanente Parties or by one or more Kaiser Permanente Parties against one or more Member Parties

.

Governing law does not prevent the use of binding arbitration to resolve the claim

[...]

"Kaiser Permanente Parties" include:

.

Kaiser Foundation Health Plan, Inc.

.

Kaiser Foundation Hospitals

.

KP Cal, LLC

[...]

.

Any employee or agent of any of the foregoing

(Petition Ex.

A.)

“The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) Because the existence of the agreement is a statutory prerequisite to granting the motion, the moving party bears the burden of proving its existence by a preponderance of the evidence. If the opposing party raises a defense to enforcement, such as fraud in the execution voiding the agreement, that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense. The facts are to be proven by affidavit or declaration and documentary evidence, with oral testimony taken only in the court's discretion. The trial court's role is to resolve these factual issues, not merely to determine whether evidence opposing the petition has sufficient substantiality. (Rosenthal v. Great Western Financial Sec. Corp. (1996) 14 Cal.4th 394, 413-414.)

Here, Defendant has established

the existence of an agreement to arbitrate by a preponderance of the evidence. Defendant presents evidence that Plaintiff personally enrolled in the Kaiser Health Plan through Asurion's online benefits enrollment system and electronically accepted the Kaiser Foundation Health Plan Arbitration Agreement as part of that enrollment. (Petition, ¶¶ 6, 11-13; Adkins Decl., ¶¶ 5-6; Asurion Decl., ¶ 4.) The Agreement/EOC expressly requires arbitration of claims arising out of a member's relationship with Health Plan, including claims for premises liability, and expressly

identifies Defendant as a "Kaiser Permanente Party" subject to the arbitration provision. (Petition, Ex. A.)

Plaintiff's claims fall within the scope of the arbitration agreement. Plaintiff alleges that he sustained injuries after encountering a dangerous condition at a Kaiser facility and asserts causes of action for negligence and premises liability against Defendant. Because the arbitration provision expressly encompasses premises liability claims asserted by a Health Plan member against Kaiser Foundation Hospitals, the present controversy is subject to arbitration.

Plaintiff has not filed an opposition to the motion and therefore presents no evidence disputing the existence or enforceability of the arbitration agreement.

Accordingly, Defendant's motion is GRANTED.

Motion to Stay Proceedings

California Code of Civil Procedure section 1281.4 states that the court shall stay the action or proceeding if the court has ordered arbitration. (Code Civ. Proc., § 1281.4.)

Accordingly, the Court will STAY proceedings pending arbitration.

Conclusion

Based on the foregoing, Kaiser Foundation Hospitals' unopposed motion to compel arbitration is GRANTED.

The action is STAYED pending completion of arbitration.